

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

CASE OF ZENKIN AND OTHERS v. RUSSIA

(Applications nos. 8507/20 and 21 others –
see appended list)

JUDGMENT

STRASBOURG

13 April 2023

This judgment is final but it may be subject to editorial revision.



In the case of Zenkin and Others v. Russia,

The European Court of Human Rights (Fourth Section), sitting as a Committee composed of:

Faris Vehabović*, President*,
Armen Harutyunyan,
Anja Seibert-Fohr*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 23 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia*, nos. 40792/10 and 2 others, §§ 68-73, 13 July 2021).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in its well-established case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-23 10 April 2018; *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019; and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, concerning various aspects of unlawful deprivation of liberty of organisers or participants of public events; and *Karelin v. Russia*, no. 926/08, 20 September 2016, related to the examination of criminal cases in the

absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO)).

V. REMAINING COMPLAINTS

13. In view of the above findings, the Court considers that there is no need to deal separately with the applicants' complaints under Article 6 of the Convention concerning other aspects of the fairness of the administrative offence proceedings and alleged restrictions on the right to examine witnesses.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints concerning the dispersal of the public assembly and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to deal separately with the remaining complaints of the applicants under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention concerning the dispersal of the public assembly;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 13 April 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Faris Vehabović
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	8507/20 31/01/2020	**Andrey Yuryevich ZENKIN** 1993	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Tverskaya str., Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 26/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27/07/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence	4,000
2.	9192/20 03/02/2020	**Anton Konstantinovich PROKOSHEV** 2001	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 24/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - administrative escorting for the purpose of drawing up a record of administrative offence and detention in excess of 3 hours, Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000
3.	9256/20 03/02/2020	**Margarita Vadimovna ILYUSHINA** 1993	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 26/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27/07/2019 in	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
				Moscow 27/07/2019				excess of 3 hours for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	
4.	9275/20 03/02/2020	**Tatyana Anatolyevna SOSNOVA** 1970	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 10/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27/07/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000
5.	9414/20 03/02/2020	**Aleksandr Andreyevich ZAMYATIN** 1991	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation for fair elections to Mosgorduma Trubnaya square, Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 18/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27-29/07/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative offence proceedings	4,000
6.	9476/20 12/02/2020	**Yevgeniy Valeryevich FADEYENKOV** 1976	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 18/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
				Moscow, Stoleshnikov alley 27/07/2019		fine of RUB 15.000		on 27/07/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	
7.	9577/20 12/02/2020	**Svetlana Alekseyevna ASTAKHOVA** 1964	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow, Tverskaya street 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 20/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 27/07/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000
8.	10254/20 13/02/2020	**Dmitriy Valeryevich VASILYEV** 1976	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 02/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - detention on 27/07/2019 in excess of 3 hours for the purpose of drawing up a record of administrative arrest; Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative offence proceedings	4,000
9.	11438/20 14/02/2020	**Konstantin Stanislavovich OPARIN** 1984	Yelanchik Oleg Aleksandrovich Moscow	Manifestation against electronic voting in	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 14/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – arrest and detention on 18/04/2019	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
				Mosgorduma elections Strastnoy boulevard, Moscow 18/04/2019 Manifestation for fair elections to Mosgorduma Tverskaya str., Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 10/09/2019	and the on 27-29/07/2019 in excess of 3 hours for the sole purpose of drawing up the records of administrative offence, Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in both sets of the administrative offence proceedings	
10.	13693/20 28/02/2020	**Sergey Leonidovich SURIN** 2000	Yatsenko Irina Aleksandrovna Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 28/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27/07/2019 in excess of 3 hours for the sole purpose of drawing a record of administrative offence, Art. 6 (1) - lack of impartiality of tribunal - lack of a prosecuting party in the administrative offence proceedings	4,000
11.	13740/20 22/02/2020	**Yegor Aleksandrovich DVINYANIN** 1987	Zakhvatov Dmitriy Igorevich Moscow	Manifestation for fair elections to Mosgorduma Moscow	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 06/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27/07/2019 in excess of 3 hours for the sole purpose of	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
				27/07/2019				drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	
12.	14250/20 22/01/2020	**Vladislav Gavrilovich DULTSOV** 1994	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 10/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention in excess of 3 hours on 27/07/2019 for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000
13.	14263/20 22/01/2020	**Danila Andreyevich KUSTOVSKIY** 1997	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 8 of CAO	fine of RUB 150,000	Moscow City Court 30/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention in excess of 3 hours on 27/07/2019 for the sole purpose of drawing up a record of administrative offence; the applicant was only released on 29/07/2017, Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	5,000
14.	14265/20 22/01/2020	**Valeriy Ivanovich LIVADNYY** 1959	Zboroshenko Nikolay Sergeyevich	Manifestation for fair elections to Mosgorduma	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 04/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal	4,000

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			Mytishchi	Moscow 27/07/2019				basis - arrest and detention in excess of 3 hours on 27/07/2019 for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	
15.	14266/20 22/01/2020	**Aleksandr Sergeyevich NIKITIN** 1989	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 06/11/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention in excess of 3 hours on 27/07/2019 for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000
16.	14269/20 22/01/2020	**Dmitriy Alekseyevich POSHVIN** 1986	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 06/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention in excess of 3 hours on 27/07/2019 for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
17.	14298/20 22/01/2020	**Ayur Barasovich SANDANOV** 1984	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 30/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27/07/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000
18.	14300/20 22/01/2020	**Pavel Stepanovich SARKISYAN** 1971	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 30/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27/07/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000
19.	14301/20 22/01/2020	**Aleksandr Yaroslavovich SEMENOV** 1998	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 30/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27/07/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence,	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	
20.	14305/20 22/01/2020	**Artem Simonovich SOLOVEYCHIK** 1960	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 08/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27/07/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000
21.	14307/20 22/01/2020	**Aleksandr Andreyevich STARIKOV** 1995	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 30/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27/07/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000
22.	14311/20 22/01/2020	**Ivan Nikolayevich SHKUTA** 1985	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 16/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27-28/07/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence,	4,000

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								Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	

[1] Plus any tax that may be chargeable to the applicants.